



PART A - INTRODUCTION

A1 Introduction.....	A-2
A1.1 DCP name and commencement	A-2
A1.2 The purpose of this Development Control Plan	A-2
A1.3 Savings and transitional arrangements	A-2
A1.4 Land covered by this Plan	A-2
A1.5 Relationship of this DCP to the LEP.....	A-2
A1.6 Aims of this DCP.....	A-2
A1.7 Relationship to other documents.....	A-3
A1.8 Background information on this document.....	A-4

A1 Introduction

A1.1 DCP name and commencement

This DCP may be referred to as the City of Canada Bay Development Control Plan. The DCP was adopted by Council and came into effect as specified in the List of Amendments.

A1.2 The purpose of this Development Control Plan

The purpose of this Development Control Plan (DCP) is to supplement the Canada Bay Local Environmental Plan (LEP) 2013 and provide more detailed provisions to guide development.

This DCP has been made in accordance with Section 3.43 of the Environmental Planning & Assessment Act 1979 (the Act) and must be read in conjunction with the provisions of Canada Bay LEP 2013.

Compliance with the provisions of this DCP does not necessarily guarantee that consent to a Development Application (DA) will be granted. Each DA will be assessed having regard to the LEP, this DCP, other matters listed in Section 4.15 of the Act, and any other policies adopted by the consent authority.

If there are circumstances when it is not relevant to comply with the controls in this DCP, applicants must provide a written submission clearly demonstrating compliance with the objectives of this DCP, and detailing the reasons the control/s should be varied. The proposed variation must result in a better outcome and meet all objectives of this DCP. The submission must also clearly demonstrate the variation sought will not adversely impact on the local amenity.

A1.3 Savings and transitional arrangements

A development application that has been lodged prior to the adoption of this plan but not determined shall be determined in accordance with the provision of the plan that applied at the date of lodgement of the application.

A1.4 Land covered by this Plan

This Plan applies to all land within the Canada Bay Local Government Area except for the sites included in:

- Strathfield Triangle Development Control Plan

It should be noted that in certain circumstances site and precinct specific DCPs adopt some of the provisions of this DCP in accordance with Section 3.43 (3) of the Act.

A1.5 Relationship of this DCP to the LEP

The provisions contained in this DCP are in addition to the provisions of the LEP. If there is any inconsistency between this DCP and the LEP, the LEP will prevail.

A1.6 Aims of this DCP

1. Encourage development that responds to its context and is compatible with the existing built environment and public domain;
2. Recognise and reinforce the distinctive characteristics of Canada Bay's neighbourhood and centres;
3. Build upon the detailed objectives and controls under Canada Bay LEP 2013;
4. Protect and enhance the public domain;
5. Encourage design that maintains and enhances the character and heritage significance of heritage items and heritage conservation areas; and
6. Encourage ecologically sustainable development and reduce the impacts of development on the environment.

A1.7 Relationship to other documents

State environmental planning policies

State environmental planning policies (SEPPs) may apply to the land to which this DCP applies. Where this occurs, the statutory provisions of those SEPPs prevail over this DCP.

The DCP does include controls for development to which SEPPs are applicable. In this regard the DCP aims to complement and provide guidance on such developments.

Community Participation Plan

Division 2.6 of the Environmental Planning and Assessment Act 1979 (EP&A Act) sets out the mandatory community participation requirements with respect to the exercise of relevant planning functions.

The City of Canada Bay Community Participation Plan sets out how and when Council will undertake community participation when exercising relevant planning functions. This includes notification of development applications and applications to modify a development consent.

Local infrastructure contributions

Under Sections 7.11 and 7.12 of the Environmental Planning and Assessment Act 1979, councils are able to levy contributions from developers for the provision of public facilities and infrastructure required as a consequence of development.

These contributions are used for the upgrade and development of community facilities, recreation facilities, infrastructure, roads and traffic management and town centre improvements.

The City of Canada Bay Local Infrastructure Contribution Plan specifies the contributions that may need to be paid for development approvals.

Affordable housing contributions scheme

Under Section 7.32(1)(c) of the Environmental Planning and Assessment Act 1979 and State Environmental Planning Policy (Housing) 2021, councils are able to develop affordable housing contributions schemes and levy contributions from developers for the provision of affordable housing as part of a development approval.

The City of Canada Bay Affordable Housing Contributions Scheme specifies the contributions that may need to be paid for development approvals.

Apartment Design Guide

The Design Guide provides planning and design standards for residential flat buildings that are three or more storeys high and that comprise at least four dwellings.

Rhodes Place Strategy

The Strategy creates a 20-year vision, and a planning and infrastructure delivery framework and complements the Rhodes East and Rhodes West planning controls in the Special Precinct section of this DCP.

Homebush Transport Oriented Development Precinct Design Guide

The Design Guide applies to land within the Homebush TOD Precinct.

Public Domain Plans/Street Design Guides

The public domain plans and street design guides provide detailed guidance on the development of specific streets and open space.

A1.8 Background information on this document

What is a Development Control Plan?

A Development Control Plan (DCP) is a commonly used town planning document which provides detailed guidance for the design and assessment of new development.

How to work through this document

Each topic contains an explanation, objectives and controls that should be complied with.

Objectives outline what the controls aim to achieve. Applicants should demonstrate that the proposed development fulfils the relevant objectives of each element and complies with the relevant controls.

Structure of this DCP

The DCP is divided into the following sections with further detail is provided in the table below:

- Part A - Introduction
- Part B - General Controls
- Part C - Heritage
- Part D - Boarding Houses
- Part E - Single Dwellings, Semi-Detached Dwellings, Dual Occupancies and Secondary Dwellings
- Part F - Multi-dwelling housing, multi dwelling housing (terraces), manor houses and residential flat buildings
- Part G - Local Centres
- Part H - Industrial Development
- Part I - Signage and Advertising
- Part J - Childcare Centres
- Part K - Special Precincts
- Part L - Definitions
- Appendix 1 - Conservation Areas
- Appendix 2 - Engineering Specifications
- Appendix 3 - Tree Species

Monitoring and review

The Council is required to keep the local environmental plans and development control plans under regular and periodic review (see section 3.21 of the Act). The Council is committed to this process to ensure that the Plans continue to be useful and relevant.